



Costs Decision

Hearing held on 25 August 2026

Site visit made on 25 August 2026

by M Clowes BA (Hons) MCD PG CERT (Arch Con) MRTPI

an Inspector appointed by the Secretary of State

Decision date: 22nd September 2026

Costs application in relation to Appeal Ref: 6010035

Victoria Vaults, 47 - 49 Nunnery Lane, York YO23 1AB

- The application is made under the Town and Country Planning Act 1990, sections 78, 322 and Schedule 6, and the Local Government Act 1972, section 250(5).
 - The application is made by Mr Nabeel Hanif [The Vaults (York)] for a full award of costs against the City of York Council.
 - The appeal was against the failure of the Council to issue a notice of their decision within the prescribed period on an application for planning permission for the conversion of Victoria Vaults public house into 3 townhouses.
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Decision

1. The application for an award of costs is refused.

The Submission by Mr Nabeel Hanif

2. An application for costs was made in writing prior to the Hearing. The basis of the claim is that the Council failed to determine the planning application within the agreed timescale, commissioned an independent review of the marketing and viability evidence after the expiry of the agreed determination period, that there was political interference in the decision-making process, it instructed its independent consultant on an incomplete brief, adopted an inconsistent position between the planning and Asset of Community Value (ACV) processes, and handled requests for information and clarification unreasonably.

The Response by the City of York Council

3. The Council's rebuttal was also submitted in writing in advance of the Hearing. It contends that the applicant did not follow pre-application advice and that this contributed to delays through the need for additional information to be provided, that the applicant declined to agree to an extension of time, that the Council's Constitution allows a ward councillor to request referral of an application to the Planning Committee, that a suitable and complete brief was provided to Stapleton Waterhouse, that the Council's determination in respect of the ACV was not made in its capacity as the Local Planning Authority, and that matters relating to Freedom of Information (FOI) requests are not relevant to the costs claim.

Reasons

4. Parties in planning appeals normally meet their own expenses. However, the Planning Practice Guidance (PPG) advises that costs may be awarded against a party who has behaved unreasonably and thereby caused the party applying for costs to incur unnecessary or wasted expense in the appeal process.

5. The Council did not determine the application within the agreed extended timescale and there was a substantial interval between that date and the subsequent lodging of the appeal. Had the application been submitted with the information the Council advised would be necessary at the pre-application enquiry stage, the delay may not have been as pronounced.
6. However, I am satisfied that the Council had substantive planning reasons for continuing to consider the proposal. Those matters related directly to the status of the appeal site as a community facility, cultural venue and employment-generating use, the adequacy of the viability and marketing evidence and the application of Policies HW1, D3 and EC2 of the City of York Local Plan, all of which were central to the determination of the application and subsequently formed the principal areas of disagreement between the parties in the appeal.
7. The commissioning of professional advice was to assist the assessment of the applicant's viability and marketing evidence, even if it was done so after the application's statutory timescale had passed. It is not unreasonable for the case officer to have time to digest and consider the findings of evidential reports before they are made publicly available.
8. Whilst a Stage 1 complaint made by the applicant to the Council was upheld insofar as the failure to meet the relevant statutory timescale, it did not succeed in relation to the Council's application of planning policy or communication with the applicant.
9. At the Hearing Mr Waterhouse confirmed that the inclusion of information relating to the ACV de-listing in the brief from the Council, would not have altered the conclusions of his report. In my decision I have found that the ACV regime and the planning system serve different purposes and apply different statutory and policy tests. Whilst the de-listing and subsequent re-listing of the appeal site were material considerations, neither was determinative of the planning issues before me, and the application of Policy HW1 did not depend upon the ACV status of the property. In those circumstances, I am not persuaded that the omission of ACV information from the brief rendered the commissioning of the review unreasonable or undermined the relevance of its conclusions.
10. Allegations of political interference and bias are also raised with reliance on *Porter v Magill*¹. However, it is not my role in determining an application for costs to make findings on whether the conduct of individual councillors (or their family members) complied with, or breached, the Council's internal procedures, protocols or codes of conduct. Those are matters that fall within separate processes. Obtaining information from interested parties whether or not they are elected councillors, does not demonstrate that the Council was overly influenced by local opposition. It is entitled to request information from any source if it would assist with the determination of a proposal.
11. The Council's Constitution also expressly provides a mechanism through which councillors may request that an application be referred to Planning Committee. It is a common procedure within Council's and reference to the possible use of that process, does not of itself, indicate improper influence over the determination of the application. I have seen no persuasive evidence that the Council was overly influenced by local opposition or acted irrationally in a manner that resulted in unreasonable behaviour contrary to the PPG. It is difficult to see how there could

¹ *Porter v Magill* [2002] 2 AC 357 (HL).

- be improper influence over the decision-making process when in this case, the Council did not make a formal decision.
12. In any event, the application for costs is made against the Council. Therefore, even if the conduct of an individual councillor could have been regarded as objectionable, it would still be necessary to demonstrate that it translated into unreasonable behaviour on the part of the Council itself. This has not been proven in this case.
 13. Whilst the applicant raises concerns regarding the Council's handling of FOI and Environmental Information Regulations matters, those issues fall primarily to be addressed through the separate statutory procedures that govern such requests. I am not persuaded that they demonstrate unreasonable behaviour by the Council in its handling of the planning application or that it unduly affected the appeal process.
 14. The applicant relies upon findings made in the First-tier Tribunal concerning the Council's conduct in respect of the original ACV listing, in which it was suggested that the Council's conduct was 'far from exemplary.' However, those comments were made in the context of different proceedings under a separate statutory regime. Importantly, I note that the Tribunal nonetheless declined to make an award of costs. I am therefore unable to place significant weight on isolated observations made within that decision. My task is to determine whether unreasonable behaviour resulting in unnecessary or wasted expense has been demonstrated in relation to the handling of the appeal before me. I have reached my conclusions on that issue based on the evidence submitted in these proceedings. Whilst aspects of the Council's communication with the applicant could have been clearer and perhaps made more promptly, there is nothing before me which persuasively demonstrates that unreasonable behaviour occurred.
 15. I have found that other decisions turned on their own particular facts which are not wholly comparable to the appeal site in question. I therefore find no evidence that the Council persisted in a position that had been rejected in previous decisions contrary to established planning principles.
 16. Having regard to the clear disagreements between the parties on the planning merits of the proposal, I am not persuaded that the applicant has demonstrated that the appeal process arose solely because of unreasonable conduct on the part of the Council. Even if the Council had issued a decision at the expiry of the agreed time extension, the evidence indicates that it would have refused the proposal and the substantive planning disagreements between the parties would have remained. An appeal may well have followed. Regardless, the work required to address the substantive planning issues was necessary to support the appeal submission overall, and would have been required in any event, rather than as a direct consequence of unreasonable behaviour.

Conclusion

17. Although I understand the applicant's evident frustration regarding the Council's handling of the application, insofar as is relevant to this costs claim, based on all of the evidence before me, it has not been demonstrated that any action or inaction by the Council, amounts to unreasonable behaviour as described in the PPG. It therefore follows that unnecessary or wasted expense has not been incurred. An award of costs is not justified.

M Clowes

INSPECTOR